

		<u>Seventh Cause of Action for Infliction of Emotional Distress</u> The allegations Moving Defendants intentionally hindered repayment of the loan with the intent to oust Plaintiff from his home in order to obtain the Subject Property’s significant equity for themselves appear sufficient to plead outrageous conduct by Moving Defendants. (See Compl., ¶¶ 22, 30, 53, 93; <i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050-51.) The demurrer to the seventh cause of action is OVERRULED. <u>Eighth Cause of Action for Quiet Title</u> Moving Defendants argue “[t]here simply is no legitimate dispute about title” because Plaintiff lost ownership of the Subject Property following a routine foreclosure sale. However, the entire basis for Plaintiff’s Complaint is that the foreclosure sale was improper. The demurrer to the eighth cause of action is OVERRULED. <u>Ninth Cause of Action for Rescission</u> “Rescission is <i>not</i> a cause of action; it is a remedy.” (<i>Nakash v. Superior Court</i> (1987) 196 Cal.App.3d 59, 70, emphasis in original.) The demurrer to the ninth cause of action is SUSTAINED with 20 days leave to amend. Moving Defendants shall give notice.
205	<i>Hilbert Group, LLC vs. Nano Banc, Inc.</i>	Court withholds a tentative ruling.
206	<i>James vs. Paired Up LLC</i>	The court withholds a tentative ruling. Parties should come to oral argument ready to discuss the

		issue of whether the Court should apply the forum-selection clause that requires that the matter be litigated in Clark County, Nevada.
207	<i>Cooper vs. Bennett</i>	The general demurrer of defendants Paul Bennett and Kathy Sakioka to the eighth, ninth, and tenth causes of action in the complaint of plaintiffs Simone and Ronald Cooper is SUSTAINED with leave to amend. Defendants demur generally to the eighth, ninth, and tenth causes of action in the complaint. They also demur specially on the ground of uncertainty to the tenth cause of action. Plaintiffs concede the merits of the demurrer to the eighth cause of action but oppose it with respect to the ninth and tenth causes of action. <u>The ninth cause of action for tenant harassment.</u> The ninth cause of action is for tenant harassment under Civil Code § 1940.2 et seq. Plaintiffs allege that section 1940.2 “prohibits specified forms of landlord conduct undertaken to influence a tenant to vacate, including willful conduct that interferes with a tenant’s quiet enjoyment and conduct intended to cause a tenant to quit involuntarily.” (Complaint, ¶ 83.) They then allege that, after plaintiffs complained of dangerous and uninhabitable conditions and asserted their rights as tenants, defendants “engaged in a course of conduct intended to pressure Plaintiffs to vacate, including servicing a sudden rent demand mischaracterized as a ‘market rate’ increase to \$3450 effective December 15, 2025, while the premises continued to suffer from ongoing conditions Plaintiffs had complained about.” (Complaint, ¶ 84.) While this may have been unfair, this rent increase does not appear to be the type of tenant harassment prohibited under section 1940.2. Plaintiffs’